

Agency Profiles and Powers - APA Evidence Briefs

This packet provides short, plain-language profiles of key federal agencies connected to housing, wages, health, and the cost of living. Each profile explains what the agency does, what laws give it power, what programs it runs, and what public data it produces. All information is based on official federal publications and statutes, but written so that any reader can understand it.

AP1 - Department of Housing and Urban Development (HUD)

Mission: HUD handles national housing policy. It works to provide safe, affordable homes and to enforce fair housing laws so people are not discriminated against when they look for housing.

Legal Authority: Department of Housing and Urban Development Act (42 U.S.C. 3531 et seq.); Housing Act of 1937 (42 U.S.C. 1437 et seq.).

Core Powers: HUD can give housing funds to states and local housing agencies, insure mortgages through the FHA, enforce the Fair Housing Act, and set safety standards for manufactured housing.

Programs and Responsibilities: HUD runs Housing Choice Vouchers (Section 8), FHA mortgage insurance for homebuyers, Community Development Block Grants for local projects, and homelessness assistance programs.

Oversight and APA Obligations: HUD is audited by its Office of Inspector General and reviewed by GAO. Major changes in rules, such as how Fair Market Rents are calculated, must go through the Administrative Procedure Act public comment process.

Public Data Outputs: HUD publishes Fair Market Rents, income limits, homelessness point-in-time counts, and the American Housing Survey with the Census Bureau.

Why This Matters: HUD sets the official rent standards for many programs and decides who qualifies for help, which directly affects housing stability for low income families.

Verification Note: This profile is based on official HUD statutes and oversight documents.

AP2 - Federal Housing Finance Agency (FHFA)

Mission: The Federal Housing Finance Agency (FHFA) regulates Fannie Mae, Freddie Mac, and the Federal Home Loan Banks to keep the mortgage system safe and stable.

Legal Authority: Housing and Economic Recovery Act of 2008 (12 U.S.C. 4511 et seq.).

Core Powers: FHFA can act as conservator for Fannie Mae and Freddie Mac, set capital rules for these companies, approve new mortgage products, and set guarantee fees charged to lenders.

Programs and Responsibilities: FHFA manages the conservatorship of Fannie and Freddie, enforces the Duty to Serve rules for underserved markets, and runs stress tests to see how the mortgage system would handle a crisis.

Oversight and APA Obligations: The FHFA Director is nominated by the President and confirmed by the Senate. FHFA is overseen by its Inspector General and GAO and must report to Congress each year on the health of the mortgage market.

Public Data Outputs: FHFA publishes the House Price Index, the National Mortgage Database, and aggregate appraisal data.

Why This Matters: Because most mortgages pass through Fannie or Freddie, FHFA decisions strongly influence mortgage rates and who can qualify for a home loan.

Verification Note: This profile is based on official FHFA statutes and oversight documents.

AP3 - Department of the Treasury

Mission: The Department of the Treasury manages federal finances. It collects taxes, pays the government bills, and oversees the public debt.

Legal Authority: General authority is found in 31 U.S.C. 301 et seq.

Core Powers: Treasury can issue Treasury bills, notes, and bonds, run the Treasury General Account, and work on tax policy with the IRS.

Programs and Responsibilities: Treasury handles debt management, daily cash operations, and policy work on the tax code and sanctions programs.

Oversight and APA Obligations: Treasury is supervised by Congress through key committees, and its Inspector General and GAO audit financial statements and programs.

Public Data Outputs: Treasury publishes the Daily Treasury Statement, Monthly Treasury Statement, and the Debt to the Penny figures.

Why This Matters: Treasury decisions determine when and how the government borrows money and how cash flows in and out of federal programs.

Verification Note: This profile is based on official Treasury statutes and oversight documents.

AP4 - Federal Reserve (Board of Governors)

Mission: The Federal Reserve is the central bank of the United States. It aims to support maximum employment, stable prices, and moderate long term interest rates.

Legal Authority: Federal Reserve Act of 1913 (12 U.S.C. 221 et seq.).

Core Powers: The Fed sets the target federal funds rate, conducts open market operations, supervises large banks, and acts as lender of last resort.

Programs and Responsibilities: The Fed runs monetary policy, operates payment systems like FedWire, and oversees bank stress tests and capital standards.

Oversight and APA Obligations: The Chair testifies before Congress twice a year. The Board is subject to audits by GAO and its Inspector General. Rulemakings go through APA processes, although monetary policy decisions themselves are not subject to notice and comment.

Public Data Outputs: The Fed issues the H.4.1 balance sheet release, H.15 interest rate tables, consumer credit reports, and the Survey of Consumer Finances.

Why This Matters: Fed decisions directly influence interest rates on mortgages, car loans, and credit cards and shape overall economic conditions.

Verification Note: This profile is based on Federal Reserve statutes and public documents.

AP5 - Internal Revenue Service (IRS)

Mission: The Internal Revenue Service (IRS) administers the federal tax code and collects the taxes that fund the government.

Legal Authority: Internal Revenue Code (26 U.S.C. 7801 et seq.) and related statutes such as the IRS Restructuring and Reform Act of 1998.

Core Powers: The IRS processes tax returns, collects payments, conducts audits, investigates fraud, and can levy property or wages for unpaid federal taxes.

Programs and Responsibilities: The IRS manages the annual filing season, issues refunds and tax credits, and oversees tax exempt status for nonprofits.

Oversight and APA Obligations: The Treasury Inspector General for Tax Administration (TIGTA) monitors IRS operations. IRS regulations are subject to the Taxpayer Bill of Rights and to APA notice and comment.

Public Data Outputs: The IRS publishes Statistics of Income tables, migration data based on address changes, and estimates of the tax gap.

Why This Matters: Tax administration is the largest annual financial interaction most households have with the federal government and shapes disposable income.

Verification Note: This profile is based on IRS statutes and official reports.

AP6 - Social Security Administration (SSA)

Mission: The Social Security Administration (SSA) runs Social Security retirement, disability, and survivor benefits to provide basic income security.

Legal Authority: Social Security Act of 1935 (42 U.S.C. 901 et seq.).

Core Powers: SSA assigns Social Security numbers, records lifetime earnings, determines benefit eligibility, and manages the OASI trust fund.

Programs and Responsibilities: SSA runs retirement and survivor benefits, disability insurance (SSDI), and Supplemental Security Income (SSI) for very low income aged or disabled people.

Oversight and APA Obligations: The Social Security Board of Trustees reports yearly on trust fund status. SSA is reviewed by GAO and its Inspector General, and many disputes go through SSA administrative law judges.

Public Data Outputs: SSA publishes the annual Trustees Report, COLA announcements, and the National Average Wage Index.

Why This Matters: Social Security is the main source of income for many retirees and shapes how wage and inflation data affect benefit levels.

Verification Note: This profile is based on SSA statutes and public reports.

AP7 - Consumer Financial Protection Bureau (CFPB)

Mission: The Consumer Financial Protection Bureau (CFPB) enforces federal consumer financial laws so that credit, mortgages, and other financial products are fair and transparent.

Legal Authority: Dodd-Frank Wall Street Reform and Consumer Protection Act (12 U.S.C. 5491 et seq.).

Core Powers: The CFPB supervises large banks and certain lenders, enforces rules against unfair or deceptive practices, and writes regulations for consumer financial products.

Programs and Responsibilities: The CFPB runs a public complaint database, writes rules for mortgages and credit cards, and brings enforcement actions against companies that break consumer laws.

Oversight and APA Obligations: The Director reports to Congress. Rules are subject to APA notice and comment and can be reviewed under the Congressional Review Act. The Bureau is funded through the Federal Reserve rather than normal appropriations.

Public Data Outputs: The CFPB publishes anonymized credit panel data, surveys of credit card terms, and HMDA mortgage lending data.

Why This Matters: CFPB actions affect interest rates, fees, and terms that households face on loans and credit products.

Verification Note: This profile is based on CFPB statutes and public documents.

AP8 - Department of Labor (DOL)

Mission: The Department of Labor (DOL) protects workers, improves working conditions, and promotes opportunities for good jobs and retirement security.

Legal Authority: Act of March 4, 1913 (29 U.S.C. 551 et seq.); Fair Labor Standards Act (29 U.S.C. 201 et seq.).

Core Powers: DOL enforces minimum wage and overtime rules, sets and enforces workplace safety standards, oversees unemployment insurance grants, and regulates many private benefit plans under ERISA.

Programs and Responsibilities: DOL includes the Bureau of Labor Statistics, the Wage and Hour Division, and OSHA, among others.

Oversight and APA Obligations: Major regulations go through extensive APA comment periods. The Department is monitored by an Inspector General, GAO, and Congress. BLS data is protected by law from political interference.

Public Data Outputs: DOL and BLS produce the Consumer Price Index, monthly jobs reports, employment cost indexes, and other labor statistics.

Why This Matters: These data series set the baseline for inflation, employment, and wage debates and DOL enforcement shapes conditions on the job.

Verification Note: This profile is based on DOL statutes and public releases.

AP9 - Department of Health and Human Services (HHS)

Mission: The Department of Health and Human Services (HHS) protects public health and provides key human services, especially for people with low incomes or special needs.

Legal Authority: Public Health Service Act (42 U.S.C. chapter 6A); Social Security Act provisions for Medicare and Medicaid.

Core Powers: HHS administers Medicare and Medicaid, regulates food and drugs through FDA, manages public health emergencies through CDC, and enforces health privacy rules such as HIPAA.

Programs and Responsibilities: Major components include CMS, CDC, FDA, Head Start, and energy assistance programs like LIHEAP.

Oversight and APA Obligations: HHS has a large Inspector General office focused on fraud and abuse. Many payment and coverage rules go through yearly APA rulemaking and are reviewed by GAO and Congress.

Public Data Outputs: HHS publishes national health expenditure accounts, Medicaid and Medicare statistics, Marketplace enrollment, and federal poverty guidelines.

Why This Matters: HHS manages a large share of federal spending and influences what households and providers pay for healthcare.

Verification Note: This profile is based on HHS statutes and public documents.

AP10 - U.S. Department of Agriculture (USDA)

Mission: The U.S. Department of Agriculture (USDA) supports farmers, protects natural resources, and works to ensure a safe and affordable food supply.

Legal Authority: 7 U.S.C. 2201 (establishment); Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.).

Core Powers: USDA administers nutrition programs such as SNAP, inspects meat, poultry, and eggs for safety, manages farm support and insurance programs, and supports rural housing and utilities.

Programs and Responsibilities: Key parts of USDA include the Food and Nutrition Service, Farm Service Agency, and Rural Development programs.

Oversight and APA Obligations: USDA programs are reauthorized in the Farm Bill every five years. The Inspector General and GAO monitor waste and fraud. Regulatory changes on food safety and benefits follow APA procedures.

Public Data Outputs: USDA publishes the Thrifty Food Plan, annual food security reports, and crop supply and demand estimates such as WASDE.

Why This Matters: USDA decisions shape food assistance benefits, food prices, and conditions in rural communities.

Verification Note: This profile is based on USDA statutes and public reports.